

Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-09, SERIES OF 2026

Series of 2026

**AN ORDINANCE REGULATING TELECOMMUNICATIONS CABLE INSTALLATIONS,
UNDERGROUND UTILITY DUCTS, AND RESTORATION OF PUBLIC ROADS IN DAVAO
CITY**

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE -

This Ordinance shall be cited as the 'Davao City Telecommunications Infrastructure and Underground Cabling Ordinance of 2026'.

SECTION 2. DECLARATION OF INFRASTRUCTURE POLICY -

The City Government ensures public road safety, prevents aerial cable clutter, and coordinates telecommunications infrastructure pursuant to Republic Act No. 7925 and Republic Act No. 7160.

SECTION 3. DEFINITION OF TERMS -

'Public Telecommunications Entity' refers to any entity authorized to provide public telecommunications services. 'Excavation Permit' refers to an authorization to dig public streets.

SECTION 4. EXCAVATION PERMITS AND RESTORATION BONDS -

All telecommunications utilities undertaking street excavation for fiber optic installation must obtain an Excavation Permit from the City Engineer and post a performance restoration bond.

SECTION 5. UNDERGROUND CABLING MANDATE IN HERITAGE ZONES -

All overhead aerial power and telecommunications cables within the designated downtown historical and commercial zones must be placed underground within three (3) years.

SECTION 6. LOCAL LEGISLATIVE FRANCHISE REQUIREMENT FOR WIRELESS CARRIERS -

No public telecommunications entity holding a national legislative franchise from the Congress of the Philippines shall transmit wireless cellular signals or operate frequency transmitters within Davao City without first obtaining a separate secondary legislative franchise approved by the Sangguniang Panlungsod.

SECTION 7. UNILATERAL RATE REGULATION OF INTERNET SERVICES -

The Sangguniang Panlungsod shall fix the maximum retail subscription tariffs that mobile telephone carriers may charge individual subscribers residing within Davao City.

SECTION 8. SHARED TELECOMMUNICATION TOWER INFRASTRUCTURE -

Cellular operators are encouraged to utilize shared passive infrastructure and co-locate on authorized common cellular towers.

SECTION 9. RESTORATION QUALITY STANDARDS -

Excavated road trenches must be restored to original asphalt or concrete specifications within forty-eight (48) hours of cable laying.

SECTION 10. COORDINATING INFRASTRUCTURE COMMITTEE -

The City Telecommunications Infrastructure Coordinating Committee shall coordinate all scheduled road works to prevent duplicate street diggings.

SECTION 11. PENALTIES AND FINES -

Unauthorized excavation or failure to restore roads shall be penalized by a fine of P5,000.00 and forfeiture of the restoration bond.

SECTION 12. SEPARABILITY CLAUSE -

Invalidity of any section shall not affect the remaining portions.

SECTION 13. REPEALING CLAUSE -

All prior conflicting municipal measures are repealed.

SECTION 14. EFFECTIVITY -

This Ordinance takes effect thirty (30) days from publication.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

ATTESTED:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

ATTESTED:

SEBASTIAN Z. DUTERTE
City Mayor

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator